

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

MOTION IN COMPLIANCE WITH ORDER

TO THE HONORABLE ERIN M. WIRTH, Administrative Law Judge:

COMES NOW Complainant, Toyota de Puerto Rico Corp., (herein after “Toyota”) by and through the undersigned attorneys, and very respectfully complies with the Honorable Administrative Law Judge’s Order served last April 1, 2019.

INTRODUCTION

Toyota hereby complies with the Order served April 1, 2019, “to provide an explanation and to correct citations” in Toyota’s Opposition.

A. Table of Citations

In compliance with the Order, the undersigned have attached to this Motion a table of contents that lists every citation in the Opposition, includes a corrected citation where necessary, and identifies its page number in the Opposition.

B. Fresenius

We next address the Order’s concern regarding the Opposition’s citation to the *Fresenius* decision by the First Circuit Court of Appeals. The Opposition cites *Fresenius* in support of the proposition that, in the past, PRPA has failed to demonstrate that it is an arm of the state. When citing *Fresenius*, the Opposition incorrectly named the defendant as “PRPA”. The correct citation, as the Order points out, is *Fresenius Medical Care Cardiovascular Resources, Inc. v. Puerto Rico & Caribbean Cardiovascular Center Corp.*, 322 F.3d 56 (1st Cir.2003).

Fresenius,¹ however, does support the proposition for which it was cited. It outlines the two-step analysis that the First Circuit later applied in *Grajales v. Puerto Rico Ports Authority*, 831 F.3d 11, 16-30 (2016), to conclude that “PRPA has not met its burden to show that it is an arm of the Commonwealth entitled to immunity from this suit”. *Id.* at p. 29. The Puerto Rico District Court also relied in *Fresenius* and *Grajales* when denying PRPA’s motion to dismiss on sovereign immunity grounds, a claim based on the same underlying conduct as the instant complaint, in *Dantzler, Inc., et. al. v. PRPA*, 335 F.Supp. 3rd 226, 243-245 (D.P.R. 2018). The Opposition references both *Grajales* and *Dantzler* right after the *Fresenius* citation.²

Finally, the *Fresenius* quote to which the Order refers was not directly taken from that decision, but from *Dantzler’s* application of it. The correct citation, therefore, should have been to the *Dantzler* case, as follows:

“PRPA’s enabling act ‘does not by its terms structure [PRPA]³ to be an arm of the state’.” *Dantzler, Inc., et. al. v. PRPA*, 335 F.Supp. 3rd 226, 243 (D.P.R. 2018),

¹ In *Fresenius* the First Circuit used a two-step approach in determining the arm of the state status of public entities. It held that courts must analyze (1) the structural indicators of how the State characterized the entity, and (2) the risk that the damages will be paid from the public treasury.

² The Opposition also references *Odyssey Stevedoring of Puerto Rico, Inc. v. PRPA*, 2007 WL 666764, p. 1, Docket Nos. 02-08, 04-01, 04-06 (F.M.C. February 12, 2007), in the first and third paragraphs of Part D of the Opposition, which refers to three decisions where the FMC found PRPA not to be entitled to sovereign immunity.

³ The brackets and the bracketed text appear as such in the original quote.

citing *Fresenius v. Puerto Rico and the Caribbean Cardiovascular Center*, 322 F.3d 56, 68 (1st Cir. 2003); and *Grajales v. PRPA*, 831 F. 3d 11 at 21-22 (1st Cir. 2016).

C. *In Re Vehicle Carrier Services*

We next address the reference to an “oral argument” in relation to *In Re Vehicle Carrier Services*,⁴ made in the last sentence of the third paragraph of page 6 of the Motion. The latter should be read to refer the *request for* oral argument in relation to the Initial Decision in *In Re Vehicle Carrier Services*, 2018 WL 2214682 (F.M.C.), Docket Nos. 16-01, 16-07, 16-10, and 16-11 (F.M.C. May 7, 2018), and urging for the adoption of the *American Pipe & Construction Co. v. Utah*⁵ tolling standard. Said sentence and the ensuing paragraph, therefore, should be understood as an argument for the adoption of that standard in the captioned case, for the reasons outlined at pages 18 to 20 of the referenced Request for Oral Argument⁶. The argument supplements, not displaces, the argument for the application of the doctrine of continuing violation that precedes it in the Motion.

D. *Miscellaneous*

The first sentence at page 3 of the Opposition ends with the following references: “*Id.*, citing *Lujan*, 504 U.S. at 562, and *Focus on the Family*, 344 F.3d at 1273.” The *Id.* should be

⁴ 2018 WL 3738501 at *18-20, Docket Nos. 16-01, 16-07, 16-10, and 16-11 (Brief on Request for Oral Argument before F.M.C. July 30, 2018)

⁵ 414 U.S. 538 (1973).

⁶ The Request for Oral Argument in *In re Vehicle Services*, *supra*, argues that the complainants' antitrust suits in federal court, based on the same facts as its claims under the Shipping Act, tolled the statute of limitations under the rule set forth in *American Pipe & Const. Co. v. Utah*, 414 U.S. 538, 554, 94 S. Ct. 756, 766, 38 L. Ed. 2d 713 (1974) (the commencement of a class action suspends the applicable statute of limitations as to all asserted members of the class who would have been parties had the suit been permitted to continue as a class action). According to the argument, application of *American Pipe* tolling is appropriate because complainant did not sit on its rights, respondent has been on notice of the claims against it at least since the class action complaint was filed, and its application is compatible with the Commission's flexible rule permitting the inclusion of complaints that would otherwise be dismissed under a stricter approach, so that it can pass on the legality of allegedly injurious conduct on the merits.

replaced by a citation to *Dantzler, supra*, and the full citation would read as follows: *Dantzler, supra*, at page 242, *citing Lujan*, 504 U.S. at 562, and *Focus on the Family v. Pinellas Suncoast Transit Authority*, 344 F.3d 1263,1273 (11th Cir. 2003).

E. Conclusion

As attorneys, the undersigned strive to be known for their honesty and diligence. The errors identified in the Order were inadvertent and uncharacteristic of the undersigned's practice, not something pursued out of disregard for the rules of this Forum and, much less, out of lack of candor. The undersigned offer their apologies to this Honorable Administrative Law Judge, to the parties and to their counsel and respectfully submit that Toyota's Opposition should be resolved on the merits. Toyota is of course willing and prepared to incorporate these clarifications in a modified motion if it would assist the Honorable ALJ and the other parties.

WHEREFORE, Toyota requests that this Honorable Commission's Order be deemed as complied with.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico.

April 10, 2019.

(Signatures on next page.)

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CERTIFICATE OF SERVICE

We hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing to the following addresses:

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Table of Citations

OLD	NEW	Pages in Opposition
<i>Air Transp. Ass'n of Am., Inc. v. Jordan</i> , No. 3:16-CV-00230-HZ, 2016 WL 9000276, at *5 (D. Or. May 30, 2016).	Same. Not reported in Fed. Supp.	Footnote 1, page 3
<i>American Pipe & Construction Co. v. Utah</i> ¹ . 414 U.S. 538 (1973).	Same	Footnote 9, p. 6
<i>Ashcroft v. Iqbal</i> , 129 S. Ct. 1937, 1949 (2009).	Same	Footnote 14, p. 9
<i>Bell Atlantic Corp. v. Twombly</i> , 550 U.S. 544, 570 (2007).	Same	Footnotes 13 and 15, p. 9
<i>Camara de Mercadeo, Industria, y Distribucion de Alimentos v. Vazquez</i> , 2013 WL 5652076, at *11-12 (D.P.R. Oct. 16, 2013).	<i>Camara de Mercadeo, Industria, y Distribucion de Alimentos v. Vazquez</i> , 2013 WL 5652076, at *11-12 (D.P.R. Oct. 16, 2013); Civ. No. 11-1978. (Not reported in F. Supp. 2d).	Footnote 7, page 6
<i>Conley v. Gibson</i> , 355 U.S. 41, 47 (1957).	Same	Footnote 15, p. 9
<i>Crowley Liner Services, Inc., et. al. v. Puerto Rico Ports Authority</i> , 2001 WL 1632555 (2001 F.M.C.); Docket No. 00-02, September 20, 2001, at *8.	<i>Crowley Liner Services, Inc., et. al. v. Puerto Rico Ports Authority</i> , 2001 WL 1632555 (2001 F.M.C.); Docket No. 00-02, September 20, 2001.	4: 1 st citation in page: at 4* 2 nd citation in page: at 6*
<i>Dantzler, Inc., et. al. v. PRPA</i> , 335 F.Supp. 3 rd 226 (DPR 2018).	<i>Dantzler, Inc., et. al. v. PRPA</i> , 335 F.Supp. 3 rd 226 (D.P.R. 2018).	2 at pages 250-52, and 240-41); 6, Footnote 8 at p. 251-252; 7, 8
<i>Fed. Mar. Comm'n v. S.C. Ports Auth.</i> , 535 U.S. 743, 760 (2002).	Same	7
<i>FIAT Chrysler v. Wallenius</i> , 2011 WL 551713; Docket No. 17-09 (2018 F.M.C.)	Toyota wishes to withdraw this citation as allowed by the Order dated April 1, 2019.	
<i>Focus on the Family</i> , 344 F.3d at 1273.	<i>Focus on the Family v. Pinellas Suncoast Transit Authority</i> , 344 F.3d 1263, 1273 (11 th Cir. 2003).	3
<i>Fresenius v. PRPA</i> , 322 F.3d 56, 68 (1 st Cir. 2003).	<i>Fresenius v. Puerto Rico and the Caribbean Cardiovascular Center</i> , 322 F.3d 56, 68 (1 st Cir. 2003).	7, 8

<i>Grajales v. PRPA</i> , 831 F. 3d 11 at 21-22 (1 st Cir. 2016).	Same	7, 8
<i>González García v. P.R. Elec. Power Auth.</i> , 214 F.Supp.2d 194, 200-201 (D.P.R. 2002).	Same	Footnote 8, p. 6
<i>In re Pharm. Indus. Average Wholesale Price Litig.</i> 339 F. Supp. 2d 165, 176 (D. Mass. 2004).	Same	Footnote 1, page 3
<i>In re Vehicle Carrier Services</i> , 2018 WL 3738501, Docket Nos. 16-01, 16-07, 16-10, and 16-11.	<i>In re Vehicle Carrier Services</i> , 2018 WL 3738501 at *18, Docket Nos. 16-01, 16-07, 16-10, and 16-11 (Brief on Request for Oral Argument before F.M.C. July 30, 2018).	5, 6
<i>Industria y Distribucion de Alimentos v. Trailer Bridge</i> , 797 F.3d 141 (1st Cir. 2015).	<i>Cámara de Mercadeo, Industria y Distribucion de Alimentos v. Trailer Bridge</i> , 797 F.3d 141 (1st Cir. 2015).	Footnote 7, page 6
<i>J.M. Altieri v. P.R.P.A.</i> , 7 F.M.C. 417, 417 (1962).	Same	4
<i>Lujan v. Defs. of Wildlife</i> , 504 U.S. 555 (1992).	<i>Lujan v. Defs. of Wildlife</i> , 504 U.S. 555, 560-61 (1992).	1 at p. 560, 2, 3 at p. 562
<i>Maher Terminals, LLC v. The Port of New York and New Jersey</i> , 2011 WL 7144003 at *28-29; Docket No. 08-03 (2011 F.M.C.).	<i>Maher Terminals, LLC v. The Port of New York and New Jersey</i> , 2011 WL 7144003 at *11; Docket No. 08-03 (F.M.C. May 16, 2011).	Footnote 5, page 5
<i>Mitsui O.S.K. Lines LTD. v. Global Link Logistics</i> , 2011 WL 7144008 (2011 F.M.C.), Docket No. 09-01 at *11.	<i>Mitsui O.S.K. Lines LTD. v. Global Link Logistics</i> , 2011 WL 7144008 at*11; Docket No. 09-01 (F.M.C. August 1, 2011).	Footnote 11, p. 8
<i>Nat'l R.R. Passenger Corp. v. Morgan</i> , 536 U.S. 101, 117 (2002).	Same	Footnote 6, page 5
<i>Odyssea Stevedoring of Puerto Rico, Inc. v. PRPA</i> , 2007 WL 6666764, Docket Nos. 02-08, 04-01, 04-06 (F.M.C. 2007).	Toyota wishes to withdraw this citation as allowed by the Order dated April 1 st , 2019.	
<i>Pastrana-Torres v. Corporación de P.R. para la Difusión Pública</i> , 460 F.3d 124, 126 (1st Cir. 2006).	Same	7

<i>Puerto Rico Shipping Association v. PRPA</i> , 27 S.R.R. 645,649 (1996).	<i>Puerto Rico Shipping Association v. PRPA</i> , 27 S.R.R. 645, 649 (F.M.C. 1996); 1996 WL 148665 at *1; Docket No. 94-10 (March 20, 1996).	5
<i>Puerto Rico Ports Authority v. F.M.C.</i> , 642 F.2d 471, 485 (D.C. Cir. 1980).	Same	4
<i>Ruiz-Casillas v. Camacho-Morales</i> , 2004 WL 3622480, at *5.	<i>Ruiz-Casillas v. Camacho-Morales</i> , 2004 WL 3622480, at *5; Civ. No. 02–2640(JAF), April 27, 2004. (Not reported in F. Supp. 2d.)	5
<i>Seatrains Gitmo, Inc., v. Puerto Rico Maritime Shipping Auth.</i> , 18 S.R.R. 1079 (1979 ALJ).	Same	Footnote 5, page 5
<i>Sinaltrainal v. Coca-Cola Company</i> , 578 F.3d 1252, 1260 (11th Cir. 2009).	Same	Footnote 12, p. 8
<i>Sprint Commc’n Co. v. APCC Servs., Inc.</i> , 554 U.S. 269, 290 (2008).	Same	3
<i>The Lake Charles Harbor and Terminal District v. West Cameron Port, Harbor and Terminal District</i> , 2007 WL 2468431; Docket No. 06-02 (2007 F.M.C.).	<i>The Lake Charles Harbor and Terminal District v. West Cameron Port, Harbor and Terminal District</i> , 2007 WL 2468431; Docket No. 06-02 (F.M.C. August 2, 2007).	Footnote 11, p. 8
<i>Tobin v. Liberty Mut. Ins. Co.</i> , 553 F.3d 121, 130 (1st Cir. 2009).	Same	Footnote 6, page 5
<i>Wojcik v. Mass. St. Lottery Comm’n</i> , 300 F.3d 92, 99 (1st Cir. 2002).	Same	7